



Maritime &
Coastguard
Agency

Guidance

MGN 400 (M+F)Amendment 1: Additional guidance on the merchant shipping (prevention of air pollution from ships) regulations 2008 as amended by the merchant shipping (prevention of air pollution from ships)(amendment) regulations 2010

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Summary

This MGN provides guidance on the Sulphur Oxides requirements set forth in the Merchant Shipping (Prevention of Air Pollution from Ships) Regulations 2008 (as amended) (“the Regulations”). The guidance covers the following aspects:

- Provision of guidance for ships anchored within UK ports
- Recommendations for determining “sufficient time” for fuel changeover operations by ships at berth in UK ports
- Requirements for keeping records in ship’s logbooks

- Clarification of the term “hotelling” in the context of ships operations at berth
- Exemptions from The Merchant Shipping (Prevention of Air Pollution from Ships) Regulations 2008 (as amended).

1. Introduction

1.1 Regulation 4 of Schedule 2A requires that ships at berth in United Kingdom ports and inland waterways vessels do not use marine fuel which has a sulphur content exceeding 0.10 per cent by mass.

1.2 Regulation 4(2) of Schedule 2A identifies that this requirement does not apply to ships at berth in United Kingdom ports for that period of time which is sufficient to allow the crew to complete any necessary fuel-changeover operation. These changeover operations should be completed as soon as possible after arrival at berth and as late as possible before departure from berth.

1.3 The Regulations define a ship at berth as meaning “ships which are securely moored or anchored in a United Kingdom Port while it is loading, unloading or hotelling, including the time spent when not engaged in cargo operations”.

1.4 In order to further clarify the applicability of Regulation 4 of Schedule 2A, and in particular expand upon the definitions provided in the Regulations, the following guidance is provided.

2. Guidance for ships anchored within a UK port

2.1 A ship anchored within the port limits of a UK port is required to comply with the provisions for “ships at berth” in Regulation 4 of Schedule 2A.

2.2 For a ship anchored outside port limits but anchored within the North Sea Sulphur Emission Control Area, the ship shall remain compliant with the sulphur content limit for fuel oil used on board the ship for North Sea Sulphur Emission Control Area.

3. Guidance on the term “sufficient time” allowed for fuel changeover operations by ships at berth in UK ports

3.1 What is and what is not “sufficient time” to allow for fuel changeover operations may vary. However the Regulations establish that ships are not required to changeover fuel where according to published timetables, ships are due to be at berth for less than two hours. It can be inferred from this exemption, in general, that one hour could be considered as sufficient time to complete fuel changeover operations recognising that the time may vary depending upon ship type and ship systems.

3.2 Other factors that should be considered when determining what is sufficient time for fuel changeover operations should include:

- all relevant safe operations;
- the operating circumstances of the ship, such as to minimise the interruption of power plant;
- a need for effective maintenance and longevity of the ship’s machinery;
- any associated shore-based activity that might be required;
- machinery manufacturers’ guidance;
- company and vessel specific procedures;
- the power rating of the engines and the viscosity of the fuel being used.

3.3 The UK would not consider “sufficient time” for fuel changeover operations to include time to procure and have delivery to the ship marine fuel with a sulphur content not exceeding 0.10 %. A ship is expected to have compliant fuel onboard on arrival at berth.

3.4 A ship arriving at a UK port outside the European Union that has been unable, despite best endeavours, to source compliant marine fuel before arrival in a UK port will be expected to have made arrangements prior to arrival in the UK port to have compliant marine fuel supplied on arrival at the UK port. Where a ship arrives at a UK port without compliant marine fuel it is expected to document that efforts have been made to procure compliant marine fuel before embarking on its voyage to the UK.

4. Records in ship's logbooks

4.1 Regulations 2(4)(b), 3(5) and 4(4) of Schedule 2A require details of any fuel changeover operations to be recorded in accordance with Regulation 5 of Schedule 2A. The information required and when it is to be recorded is identified in Table 1.

When a record of fuel changeover operation is required		What is required to be recorded				
		Time	Date	Position of ship	Volume in each tank with fuel oil not exceeding 1% S	Volume in each tank with fuel oil not exceeding 0.10% S
Before entry into a SECA	Operation is completed	X	X	X	X	
Following departure from a SECA	Operation commences	X	X	X	X	
Following arrival of ship at berth	Operation commences and is completed	X	X			X
Before departure of ship from berth	Operation commences and is completed	X	X			X

Table 1: Records in ship's logbooks – fuel changeover operations

5. Guidance on the term “hotelling” in the context of operations by ships at berth

5.1 “Hotelling” should be considered as when a ship is securely moored or anchored in a port and is not loading or unloading cargo, but is providing crew and any passengers with accommodation and associated services.

6. Exemptions from The Merchant Shipping (Prevention of Air Pollution from Ships) Regulations 2008 (as amended)

6.1 Regulation 3(13)(a) of the Regulations states that these Regulations do not apply to any emission “necessary for the purpose of securing the safety of a ship”. Other exemptions are also listed in Regulation 3(13) of the Regulations.

6.2 Exemptions may be considered on a case-by-case basis upon application to the Maritime and Coastguard Agency (MCA).

6.3 To request an exemption from statutory instrument, the MSF 1261 form should be completed and submitted to the UK Authorised Recognised Organisation or appropriate Marine Office.

6.4 The MSF 1261 can be found at [Apply for survey and inspection of ships and fishing vessels - GOV.UK \(www.gov.uk\)](https://www.gov.uk/government/publications/application-for-survey-of-ships-and-fishing-vessels-msf-5100)
(<https://www.gov.uk/government/publications/application-for-survey-of-ships-and-fishing-vessels-msf-5100>)

7. Additional guidance

7.1 Guidance on the safe implementation of the use of low sulphur fuel for ships calling at ports located within the European Union (EU) can be found in the Commission Recommendation 2009/1020/EU, adopted on 21 December 2009. The guidance relates to the operational problems and safety risks associated with the use of marine diesel and marine gas oil in ships that have not been designed to use such fuels or have not undergone the necessary technical adaptation.

More information

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